DEPARTMENT OF HEALTH AND HUMAN SERVICES

OFFICE OF INSPECTOR GENERAL

OFFICE OF INVESTIGATIONS
SPECIAL INVESTIGATIONS BRANCH
330 INDEPENDENCE AVENUE, S.W.
ROOM 5409
WASHINGTON, DC 20201

May 30, 2025

By Email
Kevin Turnage
Kevin.Turnage@ihs.gov

RE: Whistleblower Complaint No. I210152

Dear Kevin Turnage:

The U.S. Department of Health and Human Services, Office of Inspector General, Office of Investigations (OIG/OI) has completed its review of your complaint of reprisal, which we received on May 28, 2025.

We have reviewed the reprisal allegations set forth in your complaint and determined that there is insufficient evidence to warrant further investigation. We base our determination on the following:

- ☐ **Complaint Filed in Another Forum** (*e.g.,* EEO, Federal/State Court, etc.)

- ☐ **Standing:** Complainant is not a protected whistleblower (e.g., an HHS contractor, subcontractor, grantee, subgrantee or personal services contractor, a member of the U.S. Public Health Service Commissioned Corps, an HHS employee or applicant for employment).

- ☐ **Protected Disclosure:** Complainant has not alleged, during the complaint nor during the intake interview, that they made or were preparing to make a protected disclosure, or that they were perceived as having made a protected disclosure under the relevant reprisal statute.

- ☐ **Personnel Action:** Complainant has not alleged, during the complaint nor during the intake interview, that an unfavorable personnel action was taken or threatened to be taken against them or that a favorable personnel action was withheld or threatened to be withheld from them.

This document, including any attachments and information contained therein, is the property of HHS OIG and is for OFFICIAL USE ONLY. The original and any copies of the report must be appropriately controlled and maintained. Disclosure to unauthorized persons without prior written approval of the Deputy Inspector General for Investigations or his/her designee is strictly prohibited and may subject the disclosing party to liability. Unauthorized persons may include, but are not limited to, individuals referenced in the report, contractors, and individuals outside the HHS. Public disclosure is determined by the Freedom of Information Act (Title 5, U.S.C., Section 552) and the Privacy Act (Title 5, U.S.C., Section 552a). *Version: 05/2023*

☐ **Knowledge:** The Complainant alleged that the management official(s) responsible for the personnel action had no knowledge of the protected disclosure(s) and did not articulate that the official perceived the Complainant as having made or prepared to make a protected disclosure.

☒ **Referral:** The Office of Special Counsel (OSC) is the agency of primary jurisdiction to investigate Federal employee reprisal complaints; therefore, you may wish to submit your reprisal allegations to the OSC. You may visit its web site at https://osc.gov for more information.

☐ **Complainant Voluntary Withdrawal:** You contacted our office stating your desire to withdraw your whistleblower complaint of reprisal. Finding no indication that your request to withdraw your complaint was in any way coerced, we hereby approve your request and dismiss your case.

☐ **Unresponsive Complainant:** 10-Day Letter issued to complainant with no response.

☐ **Other Reason** (if checked, please see reason below)

_____

After reviewing the complaint you submitted to the HHS OIG Hotline, SIB determined you are a federal employee. As a federal employee, the Office of Special Counsel is the agency that has primary jurisdiction to investigate federal employee reprisal complaints. As stated above, you may wish to submit your reprisal allegations to the OSC. Because OSC has primary jurisdiction in this matter, SIB has decided to close your complaint.

If your complaint contains non-reprisal allegations within OIG's jurisdiction (i.e., fraud, waste, or abuse), we will refer these allegations to the appropriate authority for any action that may be appropriate. The Inspector General Act and other laws prohibit the disclosure of the complainant without their consent unless OIG determines that disclosure is unavoidable during the course of an investigation. Such disclosures may occur when referring non-reprisal matters to other law enforcement agencies for investigation.

Sincerely,

Adam Layton

Adam Layton
Assistant Special Agent in Charge
Special Investigations Branch

Cc: Advice Branch, Office of Counsel to the Inspector General, OIG